

Court No. - 3

Case :- WRIT - C No. - 6464 of 2024

Petitioner :- Saabir Khan

Respondent :- State Of U.P. Thru. Secy. Energy Deptt. Civil
Sectr. Lko. And Others

Counsel for Petitioner :- Vinod Kumar, Shubham Tiwari

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Shree Prakash Singh, J.

Heard learned counsel for the petitioner, Sri Manish Jauhari,
who appears on behalf of the respondent nos. 2, 3 and 4.

This petition has been filed by the petitioner with the following
main prayers:-

*"I. Issue a writ, order or direction in the nature of Mandamus
Commanding Opp. party No. 3 & 4 to restore the power supply of
petitioners House situated at Village and post- Tamrasepur, Tehsil-
Lambhua, District- Sultanpur.*

*II. Issue a writ, order or direction in the nature of Mandamus
Commanding opposite party No. 3 & 4 to provide the benefit of one time
settlement to deposition of electricity of bill of amount of Rs. 53,043/-.*

*III. Issue a writ, order or direction in the nature of Mandamus
Commanding opposite parties to consider and decide the representation of
the petitioner as contained as Annexure No. 6 to this writ petition."*

It has been submitted by learned counsel the petitioner that the
petitioner has the rural domestic electricity connection at his
home situated at village and post Tamrasepur, Tehsil-Lambhua
District-Sultanpur. The electricity connection has sanctioned
load of 1KWH. The petitioner paid the bill regularly, but the
opposite party no. 4 visited the house of the petitioner on
24.7.2024 and prepared a false checking report which was not
signed by every member of the team and disconnected the
electricity supply for extraneous reasons. No prior notice was
served. No written order was passed by the competent authority.

Learned counsel appearing for the respondent nos. 2 to 4 has pointed out that the petitioner has arrears of Rs. 53,043/- of unpaid bills. The premises of the petitioner was inspected and meter reading was taken and it was during checking of meter that it was found that the petitioner was making unauthorized use of electricity. Action against the petitioner for unauthorized use of electricity is proposed and a provisional assessment order shall be passed in the near future. His electricity connection has been dis-connected only because of arrears. Other action regarding unauthorized use of electricity is contemplated and as and when the same shall be taken, he shall be given prior notice and opportunity of hearing.

This petition is **disposed of** with the direction to the petitioner to approach the opposite party no. 3 under paragraph no. 6.14 for the Electricity Supply Code, in the prescribed format and completing all formalities, with the prayer that installments be fixed with regard to the arrears of electricity dues that are pending against the petitioner. If such a representation is made within one week from today, completing all formalities in this regard, the opposite party no. 3 shall pass an appropriate order thereof, within a period of four weeks, thereafter.

Learned counsel for the petitioner insisted that electricity supply be restored to his house. Learned counsel for the respondent on the basis of instructions says that if half of the dues which are pending against the petitioner are deposited, within such time as given by this Court for making representation, the electricity supply to his house shall be restored, forthwith.

Order Date :- 26.7.2024
Mayank